

DEPARTMENT OF VETERANS AFFAIRS

**SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL
ITEMS IN ACCORDANCE WITH FAR 13.5**

Acquisition Plan Action ID: 36C255-24-AP-3890

1. Contracting Activity:

Network Contracting Office (NCO) 15, 3450 S. 4th Street Trafficway, Leavenworth, KS 66408 in support with the Department of Veterans Affairs (VA), Veterans Integrated Service Networks (VISN) 15 Facilities, in support of Harry S. Truman Memorial Veterans' Hospital, 800 Hospital Drive, Columbia, MO 65201-5275.

Purchase Request Number: 589-25-1-5686-0009

2. Nature and/or Description of the Action Being Processed:

This is a Brand Name sole source justification to GE Precision Healthcare for maintenance and service for the GE MacLab/Combolab hemodynamic monitoring system in accordance with FAR 13.5 Simplified Procedures for Certain Commercial Items and specifically FAR 13.501 Special Documentation Requirements, where acquisitions conducted under Simplified Acquisition Procedures are exempt from the requirements of FAR Part 6, but still require a justification using the format of FAR 6.303-2. GE MacLab/Combolab equipment is used to monitor and document patient treatment and vital signs during cardiac diagnostic procedures, cardiac catheterization, electrophysiology studies, percutaneous angioplasty, coronary stent placements and numerous other cardiac therapeutic interventions. The resulting contract will be a new firm-fixed-price contract for a base period and four (4) 12-month option periods, where options will be priced with the initial award.

3. Description of Supplies/Services Required to Meet the Agency's Needs:

The Cardiac Cath Labs and Hybrid Operating room is requiring routine maintenance for their GE Healthcare MacLab/Combolab systems and associated equipment. The contractor will provide all maintenance and repair (remote/on-site), to ensure that the system remains operational and functioning properly. The service will also include any updates to the system to ensure that the system remains compliant the manufacturer's specifications. This procurement has an anticipated

[REDACTED] - [REDACTED]

[REDACTED]

[REDACTED]

4. Statutory Authority Permitting Restricted Competition:

FAR 13.5 Simplified Procedures for Certain Commercial Items. The statutory authority for applying the Simplified Procedures for Commercial Items of FAR 13.5 is 41 U.S.C. § 1901 and is implemented by FAR 13.106-1(b)(2) for restricting competition on this procurement. Competition is restricted on this procurement for the reason below:

- ☒ (X) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements
- ☐ () Unusual and Compelling Urgency
- ☐ () Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services
- ☐ () International Agreement
- ☐ () Authorized or Required by Statute
- ☐ () National Security
- ☐ () Public Interest

5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

Only One Responsible Source – The highly specialized service of this requirement inherently limits the number of contractors that can provide this service, due to the proprietary nature of this equipment. This service requires OEM certified training, expertise, and knowledge of the equipment. This equipment can only be serviced by GE Precision Healthcare LLC, the Original Equipment Manufacturer's (OEM) certified trained personnel. Any maintenance performed by an unauthorized vendor will null and void any existing warranty. If a non-authorized vendor is selected, the damage of any equipment will be at the cost to the facility and the OEM will not be held liable.

Veteran's Health Administration

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:

A Sources Sought synopsis was issued on www.SAM.gov on 01/13/2025 under ID 36C25525Q0127 and closed 01/21/2025 requesting vendors to identify their interest and capability to the procurement. The notice received 0 responses, further confirming our assumptions regarding the capability of industry to meet our need.

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

A fair and reasonable price determination will be made by comparison to the Independent Government Cost Estimate that was formulated by using market research of historical pricing from

same or similar scope contracts that have been determined fair and reasonable, and market price lists in conjunction with the pricing methods in accordance with FAR 13.106-3.

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:

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9. Any Other Facts Supporting the Use of Other than Full and Open Competition: None

10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:

GE Precision Healthcare LLC (LB)
UEI: JJURY5M19G1
3000 North Grandview Boulevard
Waukesha, WI 53188-1615

11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:

VHAPG Part 813.5 Simplified Acquisition Procedures for Certain Commercial Items
Request for Sole Source Justification >SAT-\$7.5M under FAR13.5

There will be continued surveillance to monitor the industry for new entrances to the market place. Furthermore, as the equipment nears the end of its life expectancy, the equipment team will reevaluate their facility's needs with the current industry capabilities and the VA's long term strategic planning to maximize competition to the extent practical.

12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

JOHN TUCKER Digitally signed by JOHN TUCKER
Date: 2025.01.28 10:43:20 -06'00'

John A. Tucker
HTM Chief
Columbia VAMC

13. **Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):**

- a. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

VERONICA FLORES Digitally signed by
VERONICA FLORES
Date: 2025.01.28 10:56:59
-06'00'

Veronica (Betty) Flores
Contracting Officer
Network Contracting Office (NCO) 15

- b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$750K):** I certify the justification meets requirements for other than full and open competition.

HEATHER HARRISON Digitally signed by
HEATHER HARRISON
Date: 2025.01.29
09:30:21 -06'00'

Heather S. Harrison
Supervisory Contract Specialist
Branch Chief - Medical Services & Equipment
Network Contracting Office (NCO) 15